

**BEFORE THE
COMMISSION ON TEACHER CREDENTIALING
STATE OF CALIFORNIA**

In the Matter of the Accusation and Statement of Issues

Against:

SCOTT REED MARTIN, Respondent

Agency Case No. 2-677496723

OAH No. 2025070566

PROPOSED DECISION

Jennevee H. de Guzman, Administrative Law Judge, Office of Administrative Hearings, State of California, heard this matter by videoconference on November 24, 2025, from Sacramento, California.

Brent O. Jex, Deputy Attorney General, represented complainant Mary Vixie Sandy, Ed.D, Executive Director, California Commission on Teacher Credentialing (Commission).

Costa Kerestenzis and Alex Leichenger, Attorneys at Law, Beeson Tayer & Bodine, APC, represented respondent Scott Reed Martin, who was present.

Evidence was received, the record closed, and the matter submitted for decision on November 24, 2025.

FACTUAL FINDINGS

Jurisdictional Matters

1. Respondent has held multiple credentials from the Commission (collectively, "Teaching Credentials"). On December 13, 2014, the Commission issued respondent an Activity Supervisor Clearance Certificate (certificate). The certificate expired on January 1, 2020.

On December 18, 2014, the Commission issued respondent an Emergency 30-Day Substitute Teaching Permit (permit), which was renewed annually through January 1, 2022. The Commission renewed the permit on February 23, 2022, which expired on March 1, 2023, and renewed it once again on February 14, 2024, which expired on March 1, 2025.

On August 1, 2021, the Commission issued respondent a District Intern Credential (credential), which expired on February 14, 2022. On February 23, 2022, the Commission renewed the credential, which expired on June 6, 2022. It was renewed again on August 15, 2022, and expired on June 9, 2023; and once again on August 11, 2023, expired on November 8, 2023. The credential authorized respondent's service as a certificated employee.

2. On November 3, 2024, respondent submitted an Education Specialist Instruction Credential (application) to the Commission. The application is pending, and no credential has been issued.

3. On May 29, 2025, complainant, in her official capacity, signed and thereafter filed an Accusation and Statement of Issues. The Accusation seeks to discipline respondent's Teaching Credentials based on unprofessional conduct, evident

unfitness for service, immoral conduct, acts of moral turpitude, and material deception or fraud. The Accusation further alleges matters in aggravation, including that respondent's misconduct evidenced multiple acts or wrongdoing and demonstrates a pattern of misconduct, was surrounded by or followed by bad faith, dishonesty, or other violation of the law governing educators, and significantly harmed a child entrusted to his care and the public or educational system. The Statement of Issues seeks to deny respondent's application based on moral turpitude and material deception or fraud in his application.

4. Respondent timely filed a Notice of Defense. The matter was set for an evidentiary hearing before an Administrative Law Judge of the Office of Administrative Hearings, an independent adjudicative agency of the State of California, pursuant to Government Code section 11500 et seq.

TRUSD Investigation

5. The Twin Rivers Unified School District (TRUSD) employed respondent during the 2023-2024 school year. Respondent worked at Sierra View Elementary School (Sierra View) as a special development class (SDC) teacher and taught between 10 and 12 kindergarten and first grade students. His students had moderate-to-severe levels of autism spectrum disorder.

Khaliah Duran and Ruby Romo, both experienced paraeducators, worked in respondent's classroom. They were both in respondent's classroom on November 6, 2023, and observed concerning behavior from respondent toward students. Ms. Duran and Ms. Romo each reported their observations to Stephanie Tarrell, principal at Sierra View. On November 8, 2023, TRUSD placed respondent on paid administrative leave pending an investigation, and TRUSD Police Department began its investigation on the

following day. TRUSD Officer Terry Lee Usher interviewed Ms. Tarrell, Ms. Duran, Ms. Romo, two students' mothers, another paraeducator, and respondent.

6. On January 8, 2024, TRUSD informed respondent his intern credential had expired, he was not eligible to be a certificated employee, and his leave was changed to unpaid administrative leave. On February 28, 2024, TRUSD informed respondent he was non-reelected for the following school year. TRUSD sent respondent a letter stating the TRUSD Board of Trustees determined he would be non-reelected and released from employment, which was "reflected in" Resolution No. 1301. The resolution was not produced at hearing.

Commission's Findings

7. Complainant offered no evidence regarding whether the Commission conducted its own investigation and made findings. At hearing, as established by respondent's own testimony set forth below, respondent understood that the Commission has made the following allegations against him as identified in the Accusation:

- On or about November 6, 2023, respondent restrained a student by grabbing him by the face and telling him "stop" or "you need to stop."
- Later that same day, respondent restrained a student by placing his chair over the student, and using his legs to hold the student's head still.
- Later that same day, respondent grabbed a student by his arm and pulled him forcefully to the ground.

- On November 8, 2023, the TRUSD placed respondent on paid administrative leave pending an investigation into allegations that he inappropriately restrained a student.
- On or about February 28, 2024, respondent was non-reelected from the TRUSD while allegations of misconduct were pending that he inappropriately restrained a student.

Claimant's Hearing Evidence

KHALIAH DURAN'S TESTIMONY

8. Ms. Duran has worked both as a paraeducator and behavioral assistant. On November 6, 2023, she was newly assigned to work as a paraeducator in respondent's classroom. Ms. Duran described respondent's classroom as "hectic" and witnessed him physically restrain students three times that day.

9. First, Ms. Duran observed respondent becoming frustrated when a student failed to do as he directed. Rather than discussing the student's behavior with the student, respondent "clutched his hands on the student's mouth and pinched his cheeks together." Ms. Duran offered her assistance, but respondent declined.

10. Second, Ms. Duran observed respondent again becoming frustrated when a student failed to "pay attention" and perform the requested task. She stated the student "wasn't supposed to be playing." Respondent "dragged" the student by the arm "towards a different area" where the student could sit down.

11. Third, Ms. Duran observed respondent again becoming frustrated when a student failed to follow his instructions. She stated respondent "got a chair" and "put the student against the chair." She explained the chair was positioned such that it "was

a way for the student not to move instead of sitting on the chair.” She acknowledged chairs are sometimes used to redirect a student.

12. Ms. Duran did not discuss these incidents with respondent but rather reported them to Ms. Tarrell at the end of the day. Ms. Duran stated Ms. Tarrell “brushed it off.” She also reported the incident to her employment agency, who asked if she wished to return to Sierra View. Ms. Duran declined the offer because she was “not comfortable working there” and did not believe it was a safe environment. She explained she had been trained “not to touch students at all,” and to use other calming techniques, such as breathing, walking, and using “fidgets.”

RUBY ROMO’S TESTIMONY

13. Ms. Romo has worked as a paraeducator since 2020, and worked with respondent since the beginning of the 2023-2024 school year. She described respondent’s classroom as “hectic” on November 6, 2023, but typical for SDC classrooms.

14. On that day, she observed respondent physically restrain two students. First, Ms. Romo observed respondent “grab” a student by the face. She acknowledged this was a particularly aggressive student but explained safer de-escalation protocols were available to respondent. Second, in an attempt to manage two fighting students, respondent restrained one of the students in between his legs. According to Ms. Romo, respondent was “flustered,” “overwhelmed,” and spoke in an “aggressive” tone.

15. Ms. Romo stated she has witnessed respondent behave aggressively in the past and did not directly discuss these incidents with him. She felt uncomfortable around respondent because of his conduct. Ms. Romo also reported the incidents to Ms. Tarrell. She believes her concerns went unheard and felt unsupported. Ms. Romo

acknowledged SDC teachers “may have to use their hands more” than in a general education setting but explained physical contact should be used as a last resort given the availability of other more appropriate techniques. She believed, however, respondent did not intend to “hurt” his students but “didn’t know what to do” and did not seek help. Ms. Romo further acknowledged chairs are sometimes informally used as a barrier to protect a teacher or other students.

APPLICATION FOR EDUCATION SPECIALIST INSTRUCTION CREDENTIAL

16. On November 3, 2024, respondent applied for an Education Specialist Instruction Credential. The application included questions related to an applicant’s professional fitness. A question regarding school misconduct read as follows: “Have you ever been dismissed, non-reelected, suspended without pay for more than ten days, retired, resigned from, or otherwise left school because of allegations of misconduct or while allegations of misconduct were pending?” Respondent replied, “no.” He certified under penalty of perjury that his statements in the application were true and correct.

Respondent’s Evidence

RESPONDENT’S TESTIMONY

17. Respondent explained he had undetected disabilities as a child, which made learning difficult. He did not realize he had such disabilities until he was in college. Respondent stated he has since developed a passion for special education and began teaching in 2014, as a substitute teacher. He began studying for his credential through Placer County Office of Education in 2020. After receiving his credential in 2021, respondent initially worked at a school located in Sacramento and briefly worked at schools located in Loomis, Auburn, and Foresthill through 2022. Respondent

explained he voluntarily left these schools primarily to work closer to his home. Respondent began working at Sierra View in 2023.

18. On November 6, 2023, respondent stated there was “a lot going on” and “kids were everywhere” in the classroom, but he was not overwhelmed. Respondent neither recalls nor denies any of the incidents alleged against him. He stated neither Ms. Duran nor Ms. Romo spoke to him about the allegations. Respondent explained SDC classrooms are challenging environments, and it is important for the children to have a steady routine throughout the day. He has received training in proper de-escalation techniques and is knowledgeable of ways to deescalate without placing his hands on a student. Respondent explained he generally avoids physical contact with a student but that it is sometimes necessary to prevent harm.

19. Respondent understood TRUSD placed him on paid administrative leave because of the allegations. He further understood TRUSD subsequently placed him on unpaid administrative leave because his credential had expired. After his credential expired, respondent applied for a job at Woodland Unified School District (WUSD). Respondent explained he applied for the job because he “did not understand how the credential program worked.” WUSD hired respondent as an SDC teacher in August 2024, but terminated him in December 2024, due to his expired credential.

20. At the time respondent submitted his application in November 2024, he stated he was unaware of TRUSD’s investigation status. Respondent also explained he made no efforts to contact TRUSD to inquire about the status of its investigation because he believed it “was over because [he] didn’t hear anything else.” He explained he was “new to teaching” and did not understand the process. Respondent stated he read the question regarding school misconduct and understood he had been non-re-elected but “didn’t know why.” He stated he did not understand what it meant to be

non-reelected. He explained he answered all questions truthfully and had no intent to deceive.

21. Respondent explained teaching is a "learning process" for him. He "looks forward to teaching again." Respondent stated he strives to maintain good communication with parents and keeps a log book of "important things for parents" to know. Going forward, respondent wants to also establish better communication with paraeducators to ensure they are all "on the same page."

CHARACTER WITNESSES

22. Debra Brinzo has worked in education for 21 years. Ms. Brinzo first met respondent in 2018, and they occasionally worked together in a teacher and paraeducator capacity with special education students until 2021. Ms. Brinzo stated respondent is patient, kind, and good with special education students. She has never witnessed respondent act violently with his students. Ms. Brinzo opined respondent is a good teacher and should be allowed to teach.

23. Michelle Dice-Hodgdon has 29 years of teaching experience. Ms. Dice-Hodgdon has known respondent for approximately 12 years. Respondent has substituted for her approximately five times. She has observed respondent's interactions with special education students and believes he is "great with the kids." Ms. Dice-Hodgdon stated respondent is a good person and role model. She has never witnessed respondent behaving aggressively with students. She opined respondent should be able to teach again.

RESPONDENT'S DOCUMENTARY EVIDENCE

24. Respondent submitted nine letters of support. Ms. Brinzo and Ms. Dice-Hodgdon each submitted letters, which were consistent with their testimony. Eren Linstadt, Elizabeth Burdick, Jim Crum, Aaron Chan, Stephanie Tarrell, and Michelle Ansbro, former colleagues, also submitted letters of support. Collectively, they wrote about respondent's professionalism, integrity, and care and commitment to his students. Respondent also submitted a letter from Carol Rutenbergs, a parent of a former student. Ms. Rutenbergs wrote respondent was supportive and compassionate towards her son.

Respondent provided an evaluation from Foresthill Union School District dated November 30, 2022. The evaluation covered respondent's first trimester working as an intern. The evaluation addressed a number of teaching standards. The evaluator indicated respondent either met/exceeded the standards or needed improvement but did not find respondent's performance unsatisfactory.

Analysis

CAUSE FOR DISCIPLINE AND DENIAL OF APPLICATION

25. Clear and convincing evidence established respondent inappropriately restrained students on three separate occasions on November 6, 2023. Ms. Duran and Ms. Romo credibly testified as to their observations. (Evid. Code, § 780, subdivisions (a), (d), & (f).) Although they failed to remember some details due to the passage of time, their testimony persuasively demonstrated respondent had difficulty controlling his students, acted in frustration, and used inappropriately aggressive techniques to restrain his students. Specifically, Ms. Romo and Ms. Duran separately and independently observed and recalled respondent grab a student by the face. Ms.

Duran recalled, with specificity, respondent dragging a student by the arm, as well as the underlying circumstances of respondent's aggressive behavior. Ms. Romo likewise recalled, with great specificity, the incident involving respondent using his legs to restrain a student, as well as the underlying circumstances of respondent's behavior.

26. Clear and convincing evidence did not establish respondent used a chair to restrain a student in an inappropriate manner. Ms. Duran and Ms. Romo acknowledged chairs are sometimes informally used as a barrier or to redirect a student's behavior. Ms. Duran testified respondent used a chair "like a way for the student not to move," but had difficulty explaining specifically how respondent used the chair and did not describe the underlying circumstances. Ms. Romo did not witness this incident. Although Ms. Duran's testimony established respondent used a chair, clear and convincing evidence did not establish his use of the chair was inappropriate.

27. On the other hand, respondent's testimony that he did not remember these incidents lacked credibility. (Evid. Code, § 780, subd. (b).) TRUSD immediately notified respondent of the allegations, which included grabbing students by the face and arm, as well as placing a chair over a student. It is reasonable to infer that these allegations would be memorable given the seriousness and distinct nature of the allegations and respondent's training and knowledge of appropriate de-escalation techniques. Respondent failed to offer persuasive testimony as to why he could not recall these incidents. This is particularly troubling given his ability to record important classroom events in his log book. Using the most aggressive restraining technique on multiple students on the same day is surely an important classroom event. Rather, respondent seemingly places blame on the paraeducators for failing to bring his aggressive behavior to his attention.

28. Clear and convincing evidence did not establish respondent attempted to engage in material deception when he represented he had never been non-reelected "because of allegations of misconduct or while allegations of misconduct were pending." Although it strains credulity that respondent would receive serious notice of non-reelection and release from employment and intentionally remain ignorant of its meaning, the reason for respondent's non-reelection is technically unknown because Resolution No. 1301, which purportedly memorialized the determination and decision for the non-reelection, was not provided at hearing.

AGGRAVATING FACTORS

29. Complainant alleges a greater degree of adverse action is needed to adequately protect the public, schoolchildren, or the profession due to three aggravating factors. Complainant alleges respondent's misconduct evidences multiple acts of wrongdoing and demonstrates a pattern of misconduct, was surrounded by or followed by bad faith, dishonesty or other violation of the law governing educators, and significantly harmed a child entrusted to his care, the public, or educational system. (Cal. Code Regs., tit. 5, § 80300, subd. (b)(2)-(4).)

30. Clear and convincing evidence established respondent engaged in multiple acts of wrongdoing and a pattern of misconduct on November 6, 2023, which resulted in harm to his students. Despite the availability of alternative, non-aggressive techniques for restraining a child, respondent aggressively and inappropriately restrained his students out of frustration. Respondent modeled poor judgment and inappropriate behavior for his students, which caused further harm. Clear and convincing evidence did not establish complainant's misconduct was surrounded by or followed by bad faith or dishonesty. As discussed in Factual Finding 28, the reasons for respondent's non-reelection are technically unknown.

PROPRIETY OF DISCIPLINE UNDER THE *MORRISON* FACTORS

31. Even when cause for discipline exists, complainant must also demonstrate discipline is appropriate because there is a factual nexus between respondent's misconduct and unfitness to teach. (*Morrison v. State Bd. of Education* (1969) 1 Cal.3d 214, 229.) In *Morrison*, the California Supreme Court provided a list of factors for assessing a person's fitness to teach. The inquiry includes: (1) the likelihood the conduct may have adversely affected others and the degree of such adversity anticipated; (2) the proximity or remoteness in time of the conduct; (3) the type of certification held by the party involved; (4) the extenuating or aggravating circumstances, if any, surrounding the conduct; (5) the praiseworthiness or blameworthiness of the motives resulting in the conduct; (6) the likelihood of the recurrence of the questioned conduct; and (7) the extent to which disciplinary action may inflict an adverse impact or chilling effect upon the constitutional rights of the teacher involved or other teachers. (*Ibid.*)

Likelihood of Adverse Effect on Others

32. "A teacher . . . in the public school system is regarded by the public and pupils in the light of an exemplar, whose words and actions are likely to be followed by the children coming under [his] care and protection." (*Bd. of Education v. Swan* (1953), 41 Cal.2d 546, 552, quoting 66 Corpus Juris, p. 55, [overruled on other grounds by *Bekiaris v. Bd. of Education* (1972) 6 Cal.3d 575].) Respondent's conduct had an adverse effect on his students and paraeducators. As an SDC teacher, respondent's students are particularly vulnerable. His aggressive behavior resulted in harmful physical contact with the students, prevented Ms. Duran from returning to his classroom after only one day, and negatively impacted his working relationship with

Ms. Romo because she no longer felt comfortable being around him. Moreover, respondent's behavior portrayed him and the teaching profession negatively.

Proximity of Remoteness in Time

33. Respondent's misconduct occurred in November 2023, which was just two years ago. Thus, his misconduct is recent.

Type of Credentials Held

34. Respondent held multiple credentials. At the time of the events in question, he worked as an SDC teacher. Respondent's actions demonstrated an inability to self-regulate and exercise self-control, which is particularly important when teaching vulnerable special needs students.

Extenuating or Aggravating Circumstances Surrounding the Conduct

35. An extenuating circumstance is that one student was known to behave aggressively. An aggravating circumstance, however, is respondent's failure to initially utilize safer de-escalation techniques to more appropriately redirect his students' behavior. In further aggravation, respondent's misconduct involved multiple children, and he failed to take any steps to regulate his own emotions to ensure the safety of everyone present in his classroom.

Praiseworthiness or Blameworthiness of Motives

36. Respondent's behavior in November 2023 was not motivated by any praiseworthy motives. The weight of the evidence shows that the behavior was caused by his inability to manage his classroom and regulate his emotions.

Likelihood of Recurrence

37. Ms. Romo credibly testified she had witnessed respondent behave aggressively with his students in the past. Respondent presently lacks insight and refuses to accept responsibility for his behavior. In addition, respondent failed to discuss his own methods for self-regulation and self-care during overwhelming and stressful times in an SDC classroom. Thus, the likelihood of recurrence is high.

Adverse Impact or Chilling Effect upon Constitutional Rights

38. The conduct at issue in this case does not involve the exercise of any constitutional rights.

Conclusion

39. When all the *Morrison* factors are considered, complainant demonstrated by clear and convincing evidence that there is a factual nexus between respondent's conduct in the aggregate and unfitness to teach. Thus, imposing discipline is appropriate. The only remaining question is the degree of discipline.

APPROPRIATE DEGREE OF DISCIPLINE

40. The purpose of licensing proceedings is not punishment, but to protect the public. (*Fahmy v. Medical Board of California* (1995) 38 Cal.App.4th 810, 817.) Under Education Code section 44421, the disciplinary options are private admonishment, public reproof, suspension, or revocation. When the record as a whole is considered, the appropriate discipline is to revoke respondent's Teaching Credentials. Respondent's misconduct was serious and included physical harm to

multiple vulnerable children. While respondent's misconduct was limited to a single day, respondent's present refusal to accept responsibility for his actions and lack of remorse and rehabilitative efforts, such as gaining insight and self-regulation tools and techniques, demonstrate the recurrence of his harmful behavior is high. Respondent lacks the appropriate temperament required for an SDC classroom. Accordingly, revocation of respondent's Teaching Credentials is required to protect the public. For these same reasons, respondent's application must be denied.

LEGAL CONCLUSIONS

Burdens and Standards of Proof

1. Complainant bears the burden of proving the existence of grounds for disciplining respondent's credentials by clear and convincing evidence to a reasonable certainty. (*Gardener v. Comm'n on Professional Competence* (1985) 164 Cal.App.3d 1036, 1039-1040.) "The courts have defined clear and convincing evidence as evidence which is so clear as to leave no substantial doubt and as sufficiently strong to command the unhesitating assent of every reasonable mind." (*In re Terry D.* (1978) 83 Cal.App.3d 890, 899.) In a disciplinary action such as this, respondent must prove rehabilitation. (*Whetstone v. Bd. of Dental Exam'rs* (1927) 87 Cal.App. 156, 164; Evid. Code, § 500.) The burden of proof is a preponderance of the evidence (Evid. Code, § 115), which means "more likely than not." (*Sandoval v. Bank of America* (2002) 94 Cal.App.4th 1378, 1388.)

2. An applicant for a license bears the burden to prove he should be granted a license. (*Martin v. Alcohol Beverage Control Appeals Bd.* (1959) 52 Cal.2d 238.) In addition, the applicant has the burden to prove rehabilitation, which is akin to

an affirmative defense. (*Whetstone v. Bd. of Dental Exam'rs, supra*, 87 Cal.App. at p. 164.) The burden of proof is a preponderance of the evidence. (Evid. Code, § 115).

Causes for Discipline and Denial of Application

UNPROFESSIONAL CONDUCT

3. The Commission may discipline a credential for unprofessional conduct. (Ed. Code, § 44421.) The term "unprofessional conduct" is not defined by the Education Code. Nevertheless, the California Supreme Court has held the term may be construed consistent with common usage as conduct that "violates the rules or ethical code of a profession or such conduct which is unbecoming a member of a profession in good standing." (*Bd. of Education of the City of Los Angeles v. Swan* (1953) 41 Cal.2d 546, 553.)

As set forth in Factual Findings 9, 10, and 14, complainant proved by clear and convincing evidence that respondent engaged in unprofessional conduct when he inappropriately restrained students on November 6, 2023. Respondent unnecessarily harmed his students by making inappropriate physical contact with them and failed to exhaust safer, more appropriate de-escalation techniques. Cause therefore exists to discipline respondent's Teaching Credentials pursuant to Education Code section 44421.

EVIDENT UNFITNESS FOR SERVICE

4. The Commission may discipline a credential based on the holder's evident unfitness for service. (Ed. Code, § 44421.) The term "evident unfitness for service," means "clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies." (*Woodland Joint Unified Sch. Dist.*

v. Com. on Professional Competence (1992) 2 Cal.App.4th 1429, 1444.) The term also "connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Ibid.*)

5. As set forth in Factual Findings 9, 10, and 14, complainant proved by clear and convincing evidence that respondent demonstrated evident unfitness for service. Respondent lost control of his temper multiple times over the course of the day and failed to regulate his emotions. While respondent's refusal to accept responsibility for his behavior and deception is troubling, equally troubling is the lack of evidence demonstrating his efforts to address his temperamental defects or inadequacies. Respondent has chosen to work with special needs students who are exceptionally vulnerable. The inability to self-regulate during times of stress is not something that can be easily remedied by the mere notice of such conduct. Respondent must make rehabilitative efforts to ensure his misconduct does not recur. Cause therefore exists to discipline his Teaching Credentials for evident unfitness for service pursuant to Education Code section 44421.

IMMORAL CONDUCT

6. The Commission may discipline a credential for immoral conduct. (Ed. Code, § 44421.) Immoral conduct is defined as conduct that:

is hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as wil[l]ful, flagrant, or shameless conduct showing moral

indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare.

(Bd. of Ed. of San Francisco Unified Sch. Dist. v. Weiland (1960) 179 Cal.App.2d 808, 811.) Moreover, the definition of immoral conduct "must be considered in conjunction with the unique position of public school teachers, upon whom are imposed responsibilities and limitations on freedom of action which do not exist in regard to other callings." (*San Diego Unified Sch. Dist.* (2011) 194 Cal.App.4th 1454, 1466.) A teacher is often described as "an exemplar, whose words and actions are likely to be followed by the children coming under [the teacher's] care and protection." (*Palo Verde Unified Sch. Dist. v. Hensey* (1970) 9 Cal.App.3d 967, 970.)

As set forth in Factual Findings 9, 10, and 14, complainant proved by clear and convincing evidence that respondent's conduct was immoral. Respondent's repeated loss of his classroom composure and resulting harm to his students are contrary to good morals. As an SDC teacher, respondent must model appropriate behavior to his students who depend on him to ensure their safety and wellbeing while in his classroom. Cause therefore exists to discipline respondent's Teaching Credentials for immoral conduct pursuant to Education Code section 44421.

ACTS OF MORAL TURPITUDE

7. The Commission may discipline a credential "for any cause that would have warranted the denial of an application for a credential or the renewal thereof." (Ed. Code, § 44421.) An application for a credential may be denied if the applicant "has committed any act involving moral turpitude." (Ed. Code, § 44345, subd. (e).) "Moral turpitude" has been defined as "everything done contrary to justice, honesty, modesty

or good morals." (*Rice v. Alcoholic Beverage Appeals Bd.* (1979) 89 Cal.App.3d 30, 36.) An act involves moral turpitude if it involves a serious breach of a duty owed to another or to society. (*In re Stuart K. Lesansky* (2001) 25 Cal.4th 11, 16.)

As set forth in Factual Findings 9, 10, and 14, complainant proved by clear and convincing evidence that respondent's aggressive conduct involved an act of moral turpitude. Respondent unnecessarily harmed multiple students. Complainant, however, failed to prove by clear and convincing evidence that respondent's response to the question regarding school misconduct on his application involved an act of moral turpitude. The reasons for respondent's non-reelection are technically unknown. Cause therefore exists to discipline his Teaching Credentials for immoral conduct pursuant to Education Code sections 44345, subdivision (e), and 44421. For these same reasons, cause also exists to deny respondent's application for immoral conduct pursuant to Education Code section 44345, subdivision (e).

MATERIAL DECEPTION OR FRAUD

8. The Commission may discipline a credential "for any cause that would have warranted the denial of an application for a credential or the renewal thereof." (Ed. Code, § 44421.) An application for a credential may be denied if the applicant "intentionally practiced or attempted to practice any material deception or fraud in his . . . application." (Ed. Code, § 44345, subd. (g).)

As set forth in Factual Findings 6, 16, and 28, complainant failed to prove by clear and convincing evidence that respondent engaged in material deception or fraud by representing he had never been non-reelected "because of allegations of misconduct or while allegations of misconduct were pending." The reasons for respondent's non-reelection are technically unknown. Cause therefore does not exist

to discipline respondent's Teaching Credentials for material deception or fraud pursuant to Education Code sections 44345, subdivision (g), and 44421. For the same reasons, cause does not exist to deny respondent's application pursuant to Education Code section 44345, subdivision (g).

Appropriate Discipline Based on *Morrison* Factors

9. Complainant proved there is cause to discipline respondent's Teaching Credentials for unprofessional conduct, evident unfitness for service, immoral conduct, and acts of moral turpitude. Such discipline may consist of a private admonition, public reproof, or the suspension or revocation of his Teaching Credentials. (Ed. Code, §§ 44000.5; 44421.) When determining what level of discipline to impose, the Commission should consider the aggravating and mitigating factors previously identified. (Cal. Code Regs., tit. 5, § 80300, subd. (b)(2)-(4).) As set forth in Factual Finding 39, revoking respondent's Teaching Credentials is necessary to ensure public protection due to his misconduct and lack of rehabilitative efforts. Likewise, respondent's application must be denied for these same reasons.

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ORDER

Respondent Scott Reed Martin's Teaching Credentials (Activity Supervisor Clearance Certificate, Emergency 30-Day Substitute Permit, and District Intern Credential) are REVOKED, and his application for an Education Specialist Instruction Credential is DENIED.

DATE: December 19, 2025

Jennevee H. de Guzman

[Jennevee H. de Guzman \(Dec 19, 2025 14:21:07 PST\)](#)

JENNEVEE H. DE GUZMAN

Administrative Law Judge

Office of Administrative Hearings